



FEDERAL BUREAU OF INVESTIGATION

Thermo Fisher Life Tech PM Service Plan

Requisition Number: SHOP-PR-25-000385

Division(s): Laboratory Division



Justification for Other than Full and Open Competition

Nature and/or description of the action being approved

The Federal Bureau of Investigation's LABORATORY DIVISION requires the following product(s)/service(s):

- Operations and Maintenance (O&M) Support Services

In support of the Thermo Fisher/Life Technologies instruments used by the DNA Casework Unit (DCU), DNA Support Unit (DSU), Federal DNA Database Unit (FDDU), Scientific Response & Analysis Unit (SRAU), and the Research & Support Unit (RSU).

Contract Type

New contract/agreement; Firm Fixed Price

Statutory authority permitting restricted (other than full and open) competition

The Federal Bureau of Investigation's selected statutory authority which permits restricted (other than full and open) competition for this requirement is listed below.

41 U.S.C. 3304(a)(1), FAR 6.302-1 — Only One Responsible Source (Brand Name Specification)

Unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority

The Federal Bureau of Investigation's qualification of the selected statutory authority which permits restricted (other than full and open) competition for this requirement is stated below.

41 U.S.C. 3304(a)(1), FAR 6.302-1 — Only One Responsible Source (Brand Name Specification)

Unique qualification(s) application:

There is a reasonable basis to conclude that the agency's minimum needs can only be satisfied by unique supplies or services available from only one source or only one supplier with unique capabilities.

Unique qualification(s) details:

The process of analyzing the DNA samples that are sent to the FDDU daily is one which requires the extensive use of technology and skill, and the laboratory has remained current with the physical equipment required to perform this analysis through capital investments. The laboratory must also acquire the maintenance required for that equipment in order to efficiently continue the analysis of the DNA samples sent to the laboratory daily.

The BAS currently utilizes Thermo Fisher/Life Technologies equipment in order to process DNA for casework evidence, missing persons cases, TEDAC and DNA Database samples. The BAS operates on the BAS DNA LAN (BASNET). BASNET is a standalone IT system which does not connect or interfere with any FBI FISMA systems. The proposed action is for the FBI's

Laboratory Division to acquire Thermo Fisher/Life Technologies Preventative Maintenance for the instruments used by the DNA Casework Unit (DCU), DNA Support Unit (DSU), Federal DNA Database Unit (FDDU), Terrorist Explosive Device Analytical Center (TEDAC), and Research & Support Unit (RSU), and the Scientific Response & Analysis Unit (SRAU). ThermoFisher Scientific/Life Technologies is the manufacturer of the already acquired, tested, validated, and approved instruments used by the BAS in the FBI Laboratory robotic platform for very specific processes. Per ThermoFisher Scientific/Life Technologies Sole Source Letter, "ThermoFisher Scientific/Life Technologies is the sole manufacturer of the instruments listed in the attached quotation and has not issued a letter of assurance nor provided a manufacturer's training certification to any third party for the servicing of its manufactured instruments." "ThermoFisher Scientific/Life Technologies maintains intellectual property rights to its data collection software and service tools software. Third-party resellers and service providers are strictly prohibited and unauthorized to access, use, or sell this software. Doing so strictly violates our intellectual property rights." ThermoFisher Scientific/Life Technologies does not authorize any 3rd party to provide maintenance on their manufactured instruments, therefore, ThermoFisher Scientific/Life Technologies is the only source capable of providing the required maintenance services on their current LD instruments.

Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable

The Federal Bureau of Investigation's efforts made to solicit offers among as many sources as practicable is described below.

Request for Information via SAM.gov (or otherwise)

The FBI will publicize through a Notification of Intent to sole source this requirement on SAM.gov.

Anticipated dollar value of the proposed acquisition and determination by the contracting officer that the anticipated cost to the government will be fair and reasonable

The Federal Bureau of Investigation's methodology which supports the determination of fair and reasonable cost to the Government is provided below.

Market Research (including an Independent Government Cost Estimate)

IGCE completed. Review of historical contract data.

Past Performance Review

Current contract pricing from Option Year 4 with a 5% escalation added.

Description of the market research conducted and the results

The Federal Bureau of Investigation's description of the market research technique(s) it employed to determine the necessity of restricted (other than full and open) competition is provided below.

Contacting knowledgeable individuals in Government and industry regarding market capabilities to meet requirements.

Discussions with lab biologists regarding historical vendor capabilities

Reviewing the results of recent market research undertaken to meet similar or identical requirements.

Reviewed Market Research Report previously submitted.

Other facts supporting the use of restricted (other than full and open) competition

The Federal Bureau of Investigation's description of additional facts which support the use of restricted (other than full and open) competition is provided below.

The FBI Laboratory, Biometrics Analysis Section (BAS) in Quantico, VA, is responsible for processing known reference samples of convicted offenders, arrestees, and detainees, processing case work evidence and research samples, as well as developing and implementing Rapid DNA at FBI booking stations. The Laboratory in Huntsville, AL., the Terrorist Explosive Device Analytical Center (TEDAC), is also responsible for processing samples found on explosive devices and subsequently providing actionable intelligence from IED materials to the U.S. government and its partners in a continued effort to access, defeat, and counter the IED threat. The BAS analyzes DNA samples submitted from around the country. The BAS has utilized Life Technologies instruments and amplification kits for over two decades. These instruments and amplification kits are used to analyze the high volume of samples being submitted to the laboratory daily and they have been successfully validated by the Laboratory. The process of analyzing the DNA samples that are sent to the FDDU daily is one which requires the extensive use of technology and skill. The laboratory currently uses many previously tested and validated ThermoFisher Scientific/Life Technologies instruments, which include the GMIDX software for the analysis of DNA samples, 3500 Genetic Analyzers and equivalent instrumentation, and the COPAN punch instruments. The laboratory uses these systems as well as the reagents and consumables for these systems and all have been successfully validated. Maintenance must be acquired by ThermoFisher Scientific/Life Technologies for the already purchased instruments. ThermoFisher Scientific/Life Technologies makes the systems, software, reagents, so therefore they are the only vendor that can provide the necessary maintenance.

Since the FBI Laboratory must continue to utilize the current instrumentation, made by ThermoFisher/Life Technologies, this requirement will continue to be sole source. Should the FBI determine the need to replace the current baseline of equipment, then full competition for instruments and related Reagents and Consumables will be considered. A change of the robotic platform would take years, cost multiple sections of the laboratory millions of dollars, require extensive performance testing, validation, concordance testing, re-establishment of procedures and re-writing of manuals, to remain in compliance with the QA Standards. At this time, no other company has the capabilities or past performance that is equivalent to the Thermo Fishers instrumentation.

Listing of any sources that expressed a written interest in the acquisition

The Federal Bureau of Investigation's listing of interested sources is provided below.

This requirement was not publicly synopsisized. As such, no other sources have expressed an oral or written interest.

Statement of any actions the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated

The Federal Bureau of Investigation's planned and/or executed actions to remove or overcome competitive barriers for subsequent acquisitions are described below.

Other

Through market research, when new technologies become available, vendor products are evaluated for every step of the DNA typing process in a concerted effort to bring the best products and technology to bear in the FBI laboratory. At this time, the high-performing ThermoFisher technologies cannot be replaced without detriment to operations and at an excessive and duplicative cost of millions of dollars to replace the current equipment baseline. However, as new products are continually brought to market, the BAS remains informed of developments, considers potential benefits, assesses how a product/technology will fit in the existing workflow and IT infrastructure, weighs existing assets, priorities and resources, and evaluates the global impact of change (e.g., requirements for training, competency testing, proficiency testing, modifications to personnel resources, modifications to standard operating procedures and the quality system requirements). Those products with sufficient merit relative to existing procedures are always prioritized for evaluation. The FBI will continue to conduct market surveys and research available through industry shows and technology releases in the form of papers and journals. This will be used to identify potential sources on subsequent acquisitions. If potential sources are identified, it will be necessary to submit to both extended compatibility and eventual validation studies, but due to the

technical and specific nature of these courses, no other vendor has been found at this time. The FBI Laboratory holds itself to the highest standards within the forensic community and ensures that all instruments and technology used in the DNA process received the maintenance that is required for efficient use.

Description of the products and/or services required to meet the agency's needs

The Federal Bureau of Investigation's description of the requirement which meets its needs is listed below.

Products

Base Period: 2025-04-25 to 2026-04-24

Option Period 1: 2026-04-25 to 2027-04-24

Option Period 2: 2027-04-25 to 2028-04-24

Option Period 3: 2028-04-25 to 2029-04-24

Option Period 4: 2029-04-25 to 2030-04-24

Services

Base Period: 2025-04-25 to 2026-04-24

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
Research & Support Unit (RSU)			

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
Federal DNA Database Unit (FDDU)			

UNCLASSIFIED

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
DNA Support Unit (DSU)			

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
DNA Casework Unit (DCU)			

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
RAPID DNA Program			

	Quantity	Unit Price	Line Total
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each		
Scientific Response & Analysis Unit (SRAU)			

Option Period 1: 2026-04-25 to 2027-04-24

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Research & Support Unit (RSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Federal DNA Database Unit (FDDU)				

UNCLASSIFIED

UNCLASSIFIED

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Support Unit (DSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Casework Unit (DCU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
RAPID DNA Program				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Scientific Response & Analysis Unit (SRAU)				

Option Period 2: 2027-04-25 to 2028-04-24

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Research & Support Unit (RSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Federal DNA Database Unit (FDDU)				

UNCLASSIFIED

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Support Unit (DSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Casework Unit (DCU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
RAPID DNA Program				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Scientific Response & Analysis Unit (SRAU)				

Option Period 3: 2028-04-25 to 2029-04-24

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Research & Support Unit (RSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Federal DNA Database Unit (FDDU)				

UNCLASSIFIED

UNCLASSIFIED

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Support Unit (DSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Casework Unit (DCU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
RAPID DNA Program				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Scientific Response & Analysis Unit (SRAU)				

Option Period 4: 2029-04-25 to 2030-04-24

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Research & Support Unit (RSU)				

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Federal DNA Database Unit (FDDU)				

UNCLASSIFIED

UNCLASSIFIED

	Quantity	Unit Price	Line Total	Esc. Rate
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Support Unit (DSU)				
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
DNA Casework Unit (DCU)				
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
RAPID DNA Program				
Preventive Maintenance for Thermo Fisher laboratory instruments.	1 Each			
Scientific Response & Analysis Unit (SRAU)				

Other Direct Costs (ODCs)

This contract will allow for the purchase of services or goods classified as other direct costs (ODC) as identified herein. Any ODCs not documented in advance of contract award will require written approval by the FBI contracting officer (CO) prior to the purchase. Requests for approval must specifically identify the services or goods to be procured and the estimated price of each. Justification is required for all ODCs that demonstrate that the goods or services to be purchased are in direct support of the contract. Invoices submitted for payment that include ODCs must specifically identify the services or goods purchased and break out in detail the costs associated with the ODCs. Invoices containing ODCs not listed in the contract or identified and approved by the CO in advance of billing will be treated as improper invoices and will not be paid. Similarly, invoices that include ODCs listed in the contract but fail to specifically identify them and elucidate the costs in detail, will be treated as improper and will not be paid.

Base Period: 2025-04-25 to 2026-04-24

Option Period 1: 2026-04-25 to 2027-04-24

Option Period 2: 2027-04-25 to 2028-04-24

Option Period 3: 2028-04-25 to 2029-04-24

Option Period 4: 2029-04-25 to 2030-04-24


